

Supreme Court of The State of New York
County of Kings

JAMES PALOZZOLO,

Plaintiff,

- against -

CITY OF NEW YORK, P.O. JOSEPH NOTARO of the
62nd Precinct, LT. CHRISTOPHER CUNHA of the 62nd
Precinct, SGT. PARCO (first name unknown) of the 62nd
Precinct and "New York City Police Officers JOHN DOE
1-3", said names being fictitious as the actual names are
not known

Defendants.

Date Purchased

Index No.

Plaintiff(s) designate(s)
Kings County
as the place of trial

Summons

Plaintiff(s) reside(s) at
1977 66th Street
Brooklyn, NY 11204

County of Kings

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated, September 19, 2016

THE LAW OFFICE OF MICHAEL A. FORZANO

Attorney for the Plaintiffs
Office and Post Office Address
271 Avenue U
Brooklyn, NY 11223
(718) 372-1397

Defendant's Address:

CITY OF NEW YORK
100 Church Street
New York, NY 10007

ALL POLICE OFFICERS
62nd Police Precinct
1925 Bath Avenue
Brooklyn, NY 11214

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VERIFIED COMPLAINT

Plaintiff, by his attorneys, **THE LAW OFFICE OF MICHAEL A. FORZANO**,
complaining of the Defendants herein, as and for his Verified Complaint, upon information and
belief, alleges:

FIRST: That at all times hereinafter mentioned the Plaintiff was and still is a
resident of the County of Kings, City and State of New York.

SECOND: That at all times hereinafter mentioned the Defendant, CITY OF NEW
YORK, was and still is a Municipal Corporation duly organized and existing under and by virtue
of the laws of the State of New York.

THIRD: That at all times hereinafter mentioned the Defendant, Police Officer
JOSEPH NOTARO, was and still is employed as a New York City Police Officer, working out
of the 62nd Police Precinct, in the County of Kings, City and State of New York

FOURTH: That at all times hereinafter mentioned, the Defendant, Police Lieutenant CHRISTOPHER CUNHA, was and still is employed as a New York City Police Officer, working out of the 62nd Police Precinct, in the County of Kings, City and State of New York.

FIFTH: That at all times hereinafter mentioned, the Defendant, Police Sergeant PARCO (First Name unknown), was and still is employed as a New York City Police Officer, working out of the 62nd Police Precinct, in the County of Kings, City and State of New York.

SIXTH: That at all times hereinafter mentioned the Defendant, approximately three Police Officers hereinafter referred to as "JOHN DOE 1-3", fictitious names, real names being unknown to Plaintiff at this time, and intending to be the Police Officers who participated in this incident, were and still are employed as a New York City Police Officers, working out of the 62nd Police Precinct as well as others, in the County of Kings, City and State of New York

SEVENTH: That at all times herein mentioned the above officers were acting within the scope and course of their employment with the New York Police Department, and under color of Law.

EIGHTH: That all of the causes of actions pleaded herein fall within one or more of the exceptions set forth in the New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION
FALSE ARREST & FALSE IMPRISONMENT

NINTH: Plaintiff repeats and realleges each and every allegation contained in paragraphs FIRST through EIGHTH, as though set forth at length herein.

TENTH: That on or about October 23, 2015, while Plaintiff was lawfully at his place of residence, 1977 66th Street, Brooklyn, New York, at or near the "front stoop" of the premise, while the Plaintiff was talking to a friend, the Police Officer Defendants, acting on behalf of the Defendant, CITY OF NEW YORK, in the scope of their employment by the New York City Police Department, and in connection with an illegal and false arrest, punched the Plaintiff in the face; reached on to the Plaintiff's private property and dragged him off of his property, over a fence and onto the sidewalk, accosted Plaintiff, placed him under arrest, and illegally forcibly hand cuffed him, verbally and physically assaulted him, repeatedly choked and struck him, threatened and insulted him, cursed at him, attacked him, punched him in the face multiple times, struck him, beat him, kicked him, threw him to the floor, forcibly handcuffed him, and while he was handcuffed stuck him multiple time in the head and face with their knees; struck him with various implements, punched him in the face, head, neck, back arms ribs and legs, kicked him, threw him to the floor, while handcuffed, dragged throughout the street, struck him so hard that he became unconscious for several minutes. The Defendants then placed Plaintiff into an EMS vehicle while handcuffed, and forcibly transported him to a hospital against his will. It was at this time that while being treated at the hospital, that the Defendants attempted to transport the Plaintiff to a Police precinct, prevented only by the physicians ordering that the Plaintiff be stitched and have other procedures done to him before releasing him into their custody. The Defendants held him in Police Custody, handcuffed to a hospital bed for several hours with out formally charging him with a crime. Plaintiff was then transported to a police precinct, and eventually taken to Central Bookings where they charged Plaintiff with crimes they knew he didn't commit, and continued to prosecute him on such false charges, all with out cause

or justification. Plaintiff was then held in custody, against his will and being deprived of medial attention for over thirty-six (36) hours until he was finally released.

ELEVENTH: That on or about October 23, 2015 the Plaintiff was falsely arrested without a warrant by the police officers acting on behalf of the Defendant CITY OF NEW YORK.

TWELFTH: That at the aforesaid time and place, and in connection with the aforesaid arrest, the police officers handcuffed and imprisoned the Plaintiff at all of the locations referred to hereinabove, including forcibly removing him from his own property and at other locations.

THIRTEENTH: That the false arrest, detention and imprisonment continued at Central Bookings and elsewhere.

FOURTEENTH: That the aforesaid arrest was a false arrest, and constituted false imprisonment, in that it was without probable cause, without a warrant and without just cause or justification.

FIFTEENTH: That the Defendant, CITY OF NEW YORK, its agents, servants, employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that the Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

SIXTEENTH: That the aforesaid detention constituted an unlawful detention in that it resulted from an illegal and unlawful arrest with the Defendants having no cause, justification or right to detain the Plaintiff in their custody for the crimes they alleged.

SEVENTEENTH: That Plaintiff was held in Police Custody, confined against his will for approximately 36 hours; all the while being deprived of medical attention, with the Defendants knowing full well that the Plaintiff did not commit the crimes he was charged with.

EIGHTEENTH: That Plaintiff was not read his miranda rights, and was denied the right to contact an attorney for over one (1) day.

NINETEENTH: That said arrest was false, groundless and illegal in that Plaintiff committed no crime, broke no law and did no wrong, and there was no probable or just cause to believe he had.

TWENTIETH: That the Plaintiff's arrest took place at his home, in front of his friends, family members; father; neighbor, tenant and other people in his community, and received wide notoriety in the community, and among his family and friends.

TWENTY-FIRST: That due to the fact that the Plaintiff was arrested on charges related to resisting arrest, which was false and fabricated, Plaintiff's relationship has been strained with family and friends.

TWENTY-SECOND: That solely as a result of this false arrest and false imprisonment, the Plaintiff's health was impaired, Plaintiff suffered great mental distress, physical injury, irreparable damage to his reputation and character, his record was permanently marred with the false and groundless notation that he was arrested for resisting arrest, incurred substantial mental anguish, and incurred substantial and permanent psychological disturbance and embarrassment, as well as serious and permanent physical injury as hereinafter described.

TWENTY-THIRD: That solely by reason of the foregoing the Plaintiff has been damaged in the amount of Fifteen Million (\$15,000,000.00) Dollars.

SECOND CAUSE OF ACTION
ASSAULT AND BATTERY

TWENTY-FOURTH: The Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of the Complaint numbered FIRST through TWENTY-THIRD as if fully set forth herein at length.

TWENTY-FIFTH: That at the aforesaid times and places the Defendant physically assaulted, hit, struck, kicked, punched, beat and otherwise injured Plaintiff, as described above, causing severe physical injury and herein described.

TWENTY-SIXTH: That the aforesaid beating, striking, hitting and other physical contact was excessive, unnecessary, unjustified, and improper in that the Plaintiff offered no initial resistance, committed no crime, and posed no danger to the Defendants. The Plaintiff was standing on his property next to an un-lit marijuana cigarette, when suddenly and without warning the Police Officer Defendants reached over the fence from the public sidewalk, punched him in the face and dragged him off of his own property and onto the sidewalk, all the while striking him as mentioned above including punching him in the face; slamming his head into a car door; pushed him to ground, struck him with a radio, held him down and struck him with multiple punches, kicks, fists, radios and knees, while he was on the ground and handcuffed was "kneed" in the head several times with such force that the skin above his eye split open, he lost consciousness, suffered a concussion and required stitches; all the while was surrounded by multiple police officers who participated in the assault.

TWENTY-SEVENTH: That the aforesaid acts constitute assault, battery and excessive use of force by the Defendants.

TWENTY-EIGHTH: That solely by reason of the foregoing the Plaintiff has been damaged in the amount of Fifteen Million (\$15,000,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION
NEGLIGENCE

TWENTY-NINTH: Plaintiff repeats and realleges each and every allegation contained in the FIRST and SECOND Causes of Action as if fully set forth at length herein.

THIRTIETH: That at the times and places aforesaid, the police officers, while acting within the scope of their employment by the Defendant, CITY OF NEW YORK and the New York City Police Department were negligent and grossly negligent and careless in arresting and taking into custody the Plaintiff.

THIRTY-FIRST: That such negligence and gross negligence consisted of, among other things, in that they failed to properly investigate the situation; failed to ascertain the truth of the situation, which could have been ascertained upon reasonable inquiry; failed to discuss the situation with witnesses that were available; took drastic action on an unsubstantiated hunches, without any further verification or insufficient verification when the situation was not an emergency situation; failed to take proper precautions to prevent unnecessary injury to the Plaintiff while taking Plaintiff into their custody; failed to exercise the proper care and caution in taking the Plaintiff into custody; failed to properly train the police officers; entered the Plaintiff's private property without a warrant; improperly trained police officers; allowed an unstable police officer to remain on the force after repeated complaints of unnecessary force were made against him; failed to properly discipline a police officer that they knew, or should have

known, was unfit to serve as a police officer; failed to properly supervise the police officers; and were otherwise careless and negligent.

THIRTY-SECOND: That as a result of the aforesaid negligence, as well as the false arrest, assault and battery as alleged in the First and Second Cause of Action; the Plaintiff suffered severe injuries, including, amount others: Suffered injury to his arms, eyes, hands, head, face, ribs and chest; suffered a 2.6cm gash and cut over his eye that required stitches and an injection; suffered a black eye; suffered bruising to the right arm; suffered bruising to the right elbow; suffered temporary loss of vision; suffered permanent partial loss of vision; suffered permanent blurry vision; suffered ecchymosis to the right eye; suffered a concussion; suffered post concussion syndrome; suffered loss of hearing; suffers permanent ringing in ears; suffered sever head trauma; suffered traumatic iritis; suffered photophobia; suffered migrainous ara; suffered bruising to the right shoulder; suffered contusion and bruising to the right knee and elbow; suffered blurry vision to the eyes; suffered cervical and lumbar strain and sprain; was forced to be placed on highly addictive oxycodone and other medicine; suffered multiple rib fractures; was caused to have difficulty breathing, seeing, hearing; sitting and standing; suffered severe, continuous, recurring and excruciating headaches; suffered dizziness and nausea; suffered bruises, black and blues, scrapes and abrasions about the body; suffered severe injury to his eye; was caused to be hospitalized multiple times; was caused to have difficulty seeing and hearing; was caused to expend great sums for medical, hospital and other related expenses; will be required in the future to expend great sums for medical, hospital and other related expenses; has suffered great pain and distress; and was otherwise injured.

THIRTY-THIRD: That the injuries aforesaid were due to the negligence and gross negligence of the Defendants and the Plaintiff having in no way contributed thereto.

THIRTY-FOURTH: That solely by reason of the foregoing the Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

FOURTH CAUSE OF ACTION
CIVIL RIGHTS VIOLATION

THIRTY-FIFTH: The Plaintiff repeats, reiterates and realleges each and every allegation contained in the FIRST, SECOND and THIRD Causes of Actions as if fully set forth herein at length.

THIRTY-SIXTH: That the aforementioned acts are the result of an actual and defacto policy of the Defendant CITY OF NEW YORK as implemented by it's public officials, police commissioners and police departments.

THIRTY-SEVENTH: That the aforesaid occurrences constitute a deprivation of Plaintiff's civil rights under Federal Law specifically 42 U.S.C. Section 1981, 1983, 1988 and the FIRST, FOURTH, FIFTH AND FOURTEENTH AMENDMENTS of the United States Constitution.

THIRTY-EIGHTH: That the Defendant CITY OF NEW YORK's agents and employees have been conferred with "Peace Officer Status" and as such, were acting under "Color of Law" and "Color of their Authority as Peace Officers" in effecting the assault, battery and imprisonment of Plaintiff.

THIRTY-NINTH: That the aforesaid actions constitute an unlawful arrest, unlawful detention, and careless use of force, all in violation of the FIRST, FOURTH, FIFTH AND

FOURTEENTH AMENDMENTS to the United States Constitution, as well as 42 U.S.C. Section 1981, 1983 and 1988.

FORTIETH: That solely as a result of the aforesaid violation of Plaintiff's rights of under the aforesaid Federal Statutes, the Plaintiff was caused to suffer the injuries that are hereto before alleged, as well as general damages for the violation and deprivation of his liberty, invasion of privacy, and other deprivation of Civil Rights, as well as attorneys fees as provided for by said statutes.

FORTY-FIRST: That solely by reason of the foregoing the Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

FIFTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

FORTY-SECOND: The Plaintiff repeats, reiterates and realleges each and every allegation contained in FIRST, SECOND, THIRD and FOURTH Causes of Actions as if fully set forth herein at length.

FORTY-THIRD: That the aforesaid acts, the insults, humiliation, degradation and harassment of the Plaintiff by the police officers without justification or provocation, constitutes the tort of intentionally inflicting emotion distress.

FORTY-FOURTH: As a result thereof, Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

SIXTH CAUSE OF ACTION
MALICIOUS PROSECUTION

FORTY-FIFTH: The Plaintiff repeats, reiterates and realleges each and every allegation contained in the FIRST, SECOND, THIRD, FOURTH and FIFTH Causes of Action as if fully set forth herein at length.

FORTY-SIXTH: That the Defendants prosecuted Plaintiff on these false charges, with full knowledge that there was no basis in law for such a prosecution.

FORTY-SEVENTH: That as a result of such malicious and groundless prosecution, Plaintiff was forced to make numerous Court appearances to Defendant against these baseless charges.

FORTY-EIGHTH: That after many such appearances all charges were dismissed.

FORTY-NINTH: That as a result thereof, Plaintiff incurred attorney fees and other expenses in defending against these false charges.

FIFTIETH: As a result thereof, Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

SEVENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES

FIFTY-FIRST: The Plaintiff repeats, reiterates and realleges each and every allegation contained in the FIRST, SECOND, THIRD, FOURTH, FIFTH and SIXTH Causes of Action as if fully set forth herein at length.

FIFTY-SECOND: That the aforesaid acts by the Defendants were the result of willful, wanton, outrageous, malicious, illegal, brutal and unconscionable intentions and actions without cause or justification.

FIFTY-THIRD: That as a result of this wanton conduct and gross negligence, Plaintiff is entitled to recover punitive damages.

FIFTY-FOURTH: That solely by reason thereof Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

FIFTY-FIFTH: That heretofore and on December 3, 2015, the Plaintiff caused to be served upon the comptroller of the Defendant CITY OF NEW YORK, Notice of Claim, pursuant to Section 50-e of the General Municipal Law, and more than 30 days have elapsed and the claim was not settled or adjusted. Said notice of claim was served within 90 days of the occurrence complained of, and this action was commenced within one year from the date of said occurrence.

WHEREFORE: the Plaintiff demands Judgment against the Defendants in an amount which is in excess of the jurisdictional limit of all lower courts that would otherwise have jurisdiction in this matter, together with the costs and disbursements of this action.

Dated: Brooklyn, N.Y.
September 20, 2016

Yours, etc.

ANTHONY J. FORZANO, ESQ.
THE LAW OFFICE OF MICHAEL A. FORZANO
Attorney for Plaintiff
Office & P.O. Address
271 Avenue U
Brooklyn, N.Y. 11223
(718) 372 - 1397

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF KINGS) ss:

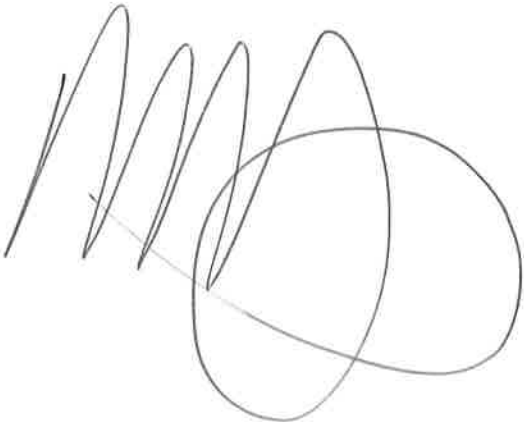
I, the undersigned, being duly sworn, depose and say:

I am the one of the Plaintiff(s) Defendant(s) in the within action.

I have read the foregoing COMPLAINT AMENDED COMPLAINT
BILL OF PARTICULARS SUPPLEMENTAL BILL OF PARTICULARS and know the
contents thereof. The same is true to my own knowledge, except as to the matters therein stated
to be alleged on information and belief, and as to those matters I believe it to be true. The
grounds to my belief as to all matters not stated upon my own knowledge are from information
obtained due to my involvement with this case.

Sworn to before me this

9/10/16 (date)



MICHAEL A. FORZANO
Notary Public, State of New York
No. 43-6383745
Qualified in Richmond County
Commission Expires 08/15